

MINISTRY OF EDUCATION AND TRAINING

MINISTRY OF JUSTICE

HA NOI LAW UNIVERSITY

TRAN THI THANH HUYEN

INDUSTRIAL PROPERTY RIGHT TO TRADEMARKS IN E-COMMERCE

Major: Economic Law

Code: 9.38.01.07

SUMMARY OF DOCTORAL DISSERTATION

HA NOI, 2022

The dissertation has been completed at:

HA NOI LAW UNIVERSITY

Scientific Supervisors

Dr. Tran Le Hong

Dr. Nguyen Van Cuong

The thesis was defended in front of the Doctoral Thesis Judging Council, at Hanoi Law University,

On.....

The thesis can be found at:

1. **National Library**
2. **Library of Hanoi Law University**

ABSTRACT

1. Reasons for choosing the dissertation topic and field of study

The emergence and development of internet have had enormous impact on all aspects of our lives, economy and society. However, the borderless E-Commerce has been raising a series of concerns, including the protection of intellectual property rights in general, industrial property rights to trademarks in particular. This fact is posing many challenges to the establishment of rights, exploitation and enforcement of industrial property rights to trademarks in the e-commerce. The coexistence between the rights in the real world to trademark owners (originally, the establishment of trademark rights was based on territorial principle) and the rights in the virtual world (thanks to the borderless feature in e-commerce, trademarks can appear in everywhere as long as the internet access is available) has been raising several concerns- how will disputes be resolved if there are disputes among the trademark owners in different countries in the world? How to protect trademark rights in E-commerce? How to identify a trademark infringement? identify trademark infringements in e-commerce? These challenges have exerted pressure on trademark owners to find the answers including innovative measurements and tools to effectively expand, protect and enforce industrial property rights to trademarks in e-commerce

At the international level, there have been many regulations and guidelines related to intellectual property rights in general and trademarks in particular in e-commerce. Notably, the regulations and guidelines within the framework of WIPO, or the regulations of ICANN, the guidelines of the International Trademark Association (INTA).

In Vietnam, one of the core elements of the socio-economic development strategy in recent years has been to promote the development of information technology (IT) and e-commerce. In reality, Vietnam has been putting a lot of resources into amending the regulations as regard to intellectual property rights which adapt to the internet environment are compatible with e-commerce operating practices. However, during the current period of deep economic integration, especially Viet Nam's participation in FTAs, including the CPTPP Agreement and the EVFTA Agreement, the study of intellectual property issues in general, and industrial property rights to trademarks in e-commerce in particular, in order to identify legal gaps, make policy recommendations and suggest practical solutions at the national level has played a pivotal role. Stemming from the above reason, the overall study of theoretical and legal issues on the establishment of rights, exploitation and protection of industrial property rights to trademarks and the reality of enforcing legal provisions of industrial property rights to trademarks in e-commerce in Vietnam has been of great significance. For this reason, the author has chosen the topic "***Industrial property rights to trademarks in e-commerce***" for the doctoral thesis.

2. The purposes and tasks for the research

2.1. The purpose of research

The purpose of the thesis is to clarify the theoretical issues of industrial property rights to trademarks in e-commerce. The thesis analyzes and evaluates the reality of legal system and enforcing legal provisions in Vietnam in terms of industrial property rights to trademarks in e-commerce, analyzing legal gaps and inadequacies in policies and legal provisions enforcement. Basing on above things, the thesis suggests a

series of recommendations and solutions to complete legal provisions and improve the efficiency of enforcing the legal provisions of industrial property rights to trademarks in e-commerce.

2.2. Research tasks

From the above purpose, the research task of the thesis is:

- Clarifying theoretical perspective about industrial property rights to trademarks in e-commerce and the legal provisions on industrial property rights to trademarks in e-commerce.
- Analyze the reality of legal provisions of industrial property rights to trademarks in e-commerce and the reality of legal provisions enforcement on this issue in Vietnam, referring from international experience and experience in several countries, focusing on the EU, the United States and a number of countries with similar conditions to Vietnam in the region.
- Making requirements and suggesting some solutions to complete the legal provisions of industrial property rights to trademarks in e-commerce and improve the efficiency of enforcing legal provisions in terms of industrial property rights to trademarks in e-commerce in Vietnam.

3. Research object and scope

3.1. Research object

- Theories, views, scientific approaches of industrial property rights to trademarks in e-commerce
- Legal provisions in Vietnam in terms of industrial property rights to trademarks in e-commerce and expanding regulations to other relevant law branches; At the same time, making the study of legal experience from foreign countries on this issue
- The reality of enforcing legal provisions of industrial property rights to trademarks in e-commerce in Vietnam

3.2. About the research scope

- About content:

Researching issues as regard to establishing rights, exploiting and protecting industrial property rights to trademarks in e-commerce

- About space

The research is approached by the author from an international perspective level (in groups of pioneering countries in this field (the United States, EU countries), some countries in the region (China, Thailand, the Philippines) and research in Vietnam.

- About time:

In Vietnam, research on intellectual property issues which have arisen since 2005, e-commerce issues arisen from 2010. Proposed solutions aim to implement the development strategies on intellectual property and e-commerce to 2030.

4. Methodological basis and research methodology

The thesis is carried out based on the method of dialectical materialism, historical materialism. On that basis, the author uses specific research methodologies of social science including:

- Analytical methods
- Synthetic method

- The Methodology of Comparative Law
- Methods of normative logic analysis
- Expertise as a Research Method

In addition, the thesis also applies a statistical method based on data, annual summary reports of the Government, the National Office of Intellectual Property, ministries, branches, localities as well as information on the Internet to solve the problems arisen of the topic.

5. The scientific significance and novelty of the thesis

The thesis has new contributions in terms of scientific aspects as follows:

- **Firstly**, the thesis has systematically analyzed and further completed the theoretical basis of industrial property rights to trademarks in e-commerce and the legal provisions on industrial property rights for trademarks in e-commerce
- **Secondly**, the thesis has analyzed more deeply and systematically about the legal provisions on industrial property rights for trademarks in e-commerce, thereby indicating a number of "legal gaps" in these provisions.
- **Thirdly**, the thesis has comprehensively analyzed the reality of enforcing legal provisions on industrial property rights to for trademarks in e-commerce in Vietnam, comparing with international experiences. Basing on above, the thesis proposes solutions to improve the legal provisions of industrial property rights for trademarks in e-commerce, improve the efficiency of legal provisions enforcement of industrial property rights for trademarks in ecommerce.

6. Practical significance of the thesis:

The research results of the thesis can be used as a reference documents for the legislative bodies , policymakers of formulating and promulgating legal policies on intellectual property, e-commerce. . The thesis can also be used to disseminate and propagate to Vietnamese enterprises when conducting business and commercial activities in the field of e-commerce. The thesis is a reference for research, teaching, development and enforcement of legal provisions on industrial property rights to trademarks in e-commerce.

7. The layout of the thesis:

In addition to the introduction, the overview of the research situation, conclusions, list of tables, references, the thesis consists of 03 chapters:

- **Chapter 1:** Theoretical issues of industrial property rights to trademarks in e-commerce and the legal provisions on industrial property rights to trademarks in e-commerce.
- **Chapter 2:** The reality of legal system and enforcing legal provisions on industrial property rights for trademarks in e-commerce in Vietnam.
- **Chapter 3:** Completing the legal system and improving the efficiency of the legal provisions enforcement on industrial property rights for trademarks in e-commerce in Vietnam

THE OVERVIEW OF RESEARCH SITUATION AND THEORETICAL BASIS OF RESEARCH

In terms of theoretical aspect, the thesis clarifies the concept, content, and peculiarities of industrial property rights to trademarks in e-commerce, as well as the concept and content of the issues of "establishing rights to trademarks in e-commerce", "exploitation of trademarks in e-commerce", "protection of industrial property rights to trademarks in e-commerce; Theoretical issues of the legal provisions on industrial property rights to trademarks in e-commerce

In terms of legal aspect, the thesis continues to analyze specifically the provisions of Vietnamese law on establishing rights, exploiting and protecting industrial property rights to trademarks in e-commerce, making comparisons to legal provisions of international law, other nations.

About practical aspects: The thesis analyzes and evaluates the reality of enforcing the legal provisions on industrial property rights to trademarks in e-commerce in Vietnam, comparing with some international experiences and other countries. Basing on above, the thesis makes recommendations and suggest solutions to improve Vietnam's legal system and improve the efficiency of the legal provision enforcement on industrial property rights for trademarks in e-commerce.

CHAPTER 1

THEORETICAL ISSUES ABOUT INDUSTRIAL PROPERTY RIGHTS TO TRADEMARK IN E-COMMERCE AND LEGAL PROVISIONS ON INDUSTRIAL PROPERTY RIGHTS TO TRADEMARKS IN E-COMMERCE

1.1. Theoretical issues about industrial property rights to trademark in E-commerce

1.1.1. Concept, content about industrial property rights to trademark

1.1.1.1. *The concept of trademarks and industrial property rights to trademark*

The term "trademark"

From the commercial perspective: "A trademark is any sign that individualizes the goods of a given enterprise and distinguishes them from the goods of its competitors." However, depending on each country's peculiar conditions, legal provisions have been amended to suit its peculiar conditions as regard to **trademark object** (visible and invisible), **entity** (individual/organization/ legal entity) or distinctive function (high distinctiveness or low distinctiveness)

The concept about industrial property rights to trademark

From economic law perspective: industrial property rights to trademarks is a set of legal norms for regulating rights of organizations, individuals to trademarks and rights against unfair competition

1.1.1.2. *Contents of industrial property rights to trademark*

Ownership Rights affords the owner 3 types of right: right to possession, right to use, right to disposition. However, with the characteristics of *intangible asset*, the contents of industrial property rights to this asset include two group rights: *exclusive use right* (it means that owner has the right to exclude others from using his or her trademarks during the time of protected trademark and rights to disposition for trademark. However, from commercial perspective of industrial property right to trademark, right to use means conducting acts relating to commerce for the purpose of generating profits when those acts are conducted (generate profits). Therefore, within the scope of the thesis, the author analyzes the content of industrial property rights to trademark, including two groups of rights: exclusive right to exploit trademark, prevent others from exploiting trademark, rights to disposition for trademark

1.1.2. Concept, content, and peculiarities of industrial property rights to trademarks in e-commerce

1.1.2.1. *The concept of industrial property rights to trademark in e-commerce*

Industrial property rights to trademarks in e-commerce include the set of legal norms governing the rights of organizations and individuals to trademarks in e-commerce and the right to combat unfair competition related to trademarks in e-commerce. This includes the following groups of legal norms governing this issue: i) Legal norms governing the State's recognition of the rights of individuals and organizations to trademarks in e-commerce through the establishment of trademark rights in e-commerce, ii) legal norms governing the contents of industrial property rights to trademark in e-commerce and are determined by exclusive right to exploit trademark, the right to exclude others from using trademark in e-commerce, iii) Legal norms governing the protection of industrial property rights to trademark in e-commerce iv) Legal norms governing rights against unfair competition related to trademark in e-commerce

1.1.2.2. The peculiarities of industrial property rights to trademark in e-commerce

Firstly, as regard to the issue of establishing industrial property rights to trademarks in e-commerce: building up a mechanism to protect industrial property rights to trademarks in specific e-commerce is necessary to tackle the problem of the co-existence of trademark rights in the real world and the virtual space, Internet. Regulations on objects used as trademarks in this particular environment should be narrowed or expanded or not, are there any peculiarities in terms of the regulation of signs used as trademarks in the e-commerce. Is the conduct of procedures for establishing rights the same or not the same as the procedures in the traditional environment?

Secondly, regarding the exploitation of industrial property rights to trademarks in e-commerce, peculiar problems arisen such as: Regarding trademark advertising in the e-commerce raised the issue to what extent does the content of the trademark owner's rights extend in the e-commerce? How to resolve the issue of the acts of unfair competition practices related to trademarks and domain names in e-commerce requires a legal mechanism to resolve disputes between domain names and trademarks in the e-commerce. How is the principle of trademark rights exhaustion applied in the internet environment? Or determining the responsibility mechanism for e-commerce service providers, when third-party trademark infringements occur, also arises an issue that needs to be resolved in this environment.

Third, the peculiar problem in protecting industrial property rights to trademarks in the e-commerce platform: stemming from the characteristics in the e-commerce platform, which makes it difficult to determine the aspects of the infringement of industrial property rights to the trademark such as: the infringing object, identification of the infringement acts in e-commerce, the location and place of the infringement of the property rights industrial for trademarks; identify acts of infringement of industrial property rights to trademarks across borders.... This determination is the basis for determining the contents of jurisdiction to make judgements, apply the law, appropriate measures to handle acts of industrial property rights infringement with respect to trademarks in e-commerce.

1.1.2.3. Basic content of industrial property rights to trademarks in e-commerce

i) Establishing industrial property rights to trademarks in the e-commerce

**The concept of establishing industrial property rights to trademarks in the e-commerce*

Establishing industrial property rights to trademarks in e-commerce includes a collection of legal provisions defining signs, requirements must be met for a trademark to be eligible for trademark protection, protection mechanisms and procedures for establishing trademark rights. in order to legally recognize the owner's exclusive rights to trademark in e-commerce

** Basic contents on establishing industrial property rights to trademarks in e-commerce*

Regulations on signs used as trademarks:

In e-commerce, what the peculiar problem should be raised when regulating signs to be used as trademarks in this environment?

- Requirements for trademark protection in e-commerce

In the e-commerce platform, will requirements must be met for a trademark to be eligible for trademark protection remain the same? Are there any peculiarity or differences that need to be amended in terms of requirements must be met for a trademark to be eligible for trademark protection in the e-commerce ?

- Mechanism of trademark protection in e-commerce

Whether the peculiar principle of intellectual property about "territoriality" remains the same, or needs to be amended and supplemented when implementing in the e-commerce.

- *How to establish trademark rights in e-commerce*

How is the issue of establishing trademark rights in the e-commerce platform posed, is it necessary to set up a separate mechanism for establishing rights for this environment?

ii)Exploiting industrial property rights to trademarks in e-commerce

- * *The concept of exploiting industrial property rights for trademarks in e-commerce*

It can be understood that exploitation of industrial property rights to trademarks in e-commerce is the practice of organizations and individuals performing all acts affecting trademarks in e-commerce in order for the purpose of generating profits.

Exploiting contents and forms of trademark exploitation in e-commerce:

In the e-commerce platform with peculiar characteristics, commercial exploitation of trademarks in e-commerce raises many problems related to the following aspects:

- *Exhaustion of rights to trademarks and parallel imports in e-commerce*

In the e-commerce platform, in order to operate conveniently and easily, and avoid disputes, uniform application of the principle for exhaustion of rights in the wide range plays significant role. The principle for international exhaustion of rights need to be taken into account by policymakers not only in Vietnam but also international level.

- *The relationship between trademarks and domain names in e-commerce*

Disputes arise when there are users and operators of the Website with a domain name but not the owner of the domain name or a trademark similar to the domain name. So,whether the current territorially based system of registration of trademarks is sufficient for the emerging borderless electronic marketplace

- *Determining the responsibilities of online intermediary service providers in e-commerce*

It is necessary to define the responsibility mechanism of commercial intermediaries providers in the Internet and e-commerce platform. Determining that mechanism on the basis of principles, on the one hand, needs to comply with the model regulations of international law, on the other hand, it is also necessary to take into account the balance and benefits, too heavy obligations should not be imposed to commercial intermediaries providers (ISPs).

iii) Protection of industrial property rights to trademarks in e-commerce

* *Concept: Protection of industrial property rights to trademarks in e-commerce is the use of appropriate measures by the owner and the State according to the legal provisions to prevent and handle acts of infringement on trademark ownership in e-commerce, and at the same time restoring the legitimate rights and interests of the trademark owner when infringed in the e-commerce*

Contents of protecting industrial property rights for trademarks in e-commerce:

- *Determining infringement of rights in e-commerce*

Infringement of industrial property rights to trademarks in e-commerce is understood as any act (action or inaction, intentionally or unintentionally) performed by a entity with civil act capacity, infringe (usually to the detriment of the owner) trademark rights in e-commerce

- *How to handle infringements in e-commerce*

The prevention of trademark infringements is accomplished through two groups of methods: i) self-protection measures of the trademark owners themselves (self-defense measures); ii) through the actions of state agencies, owners can request state agencies to protect their rights through various measures: administrative measures, criminal measures,. Civil measures to control exports and imports goods related to intellectual property

1.2. Theoretical issues of the legal provisions on industrial property rights to trademarks in e-commerce

1.2.1. The overview of the legal provisions on industrial property rights to trademarks in e-commerce

The legal provisions on industrial property rights to trademarks in e-commerce can be understood as a system of rules of conduct promulgated or recognized by the state in order to regulate social relations arising in the course of establishing rights, exploiting and protecting trademark rights in e-commerce arising in e-commerce activities

Approach in governing legal provisions on industrial property rights to trademarks in e-commerce

Because the study of industrial property rights for trademarks is interdisciplinary. Basically, the governing of the legal provisions on industrial property rights to trademarks in e-commerce is reflected in the intellectual property law.

Next, relevant intellectual property issues arising in the e-commerce platform, which are of the nature of e-commerce, will be governed by the law on e-commerce. In addition, it is the study of other relevant legal groups (Law on information technology; Law on protection of consumer rights ...)

1.2.2. Structure of legal content on industrial property rights for trademarks in e-commerce

The structure of legal content on industrial property rights to trademarks includes a set of closely related legal norms to regulate social relations in the establishment of rights, exploitation and protection of trademark rights in the e-commerce platform. It is possible to determine the legal content of industrial property rights for trademarks in e-commerce, including the following groups of legal regulations:

- i) *Legal norms on establishing industrial property rights to trademarks in e-commerce*
- ii) *Legal norms on exploitation of industrial property rights to trademarks in e-commerce*
- iii) *Legal norms on protection of industrial property rights to trademarks in e-commerce*

CHAPTER 2

THE REALITY OF LEGAL PROVISIONS AND LEGAL PROVISIONS ENFORCEMENT OF INDUSTRIAL PROPERTY RIGHTS TO TRADEMARKS IN E-COMMERCE IN VIETNAM

2.1. The reality of Vietnamese legal provisions of industrial property rights to trademarks in e-commerce

2.1.1. Legal provisions on establishing industrial property rights to trademarks in e-commerce

2.1.1.1. Regulations on objects used as trademarks

The concept of a trademark and the requirements to be used as a trademark is generally stated in Clause 16, Article 4 and Article 72 of the Vietnam Intellectual Property Law 2005, amended and supplemented in 2009, 2019 (Law on Intellectual Property). Holographic signs are accepted for protection as trademarks, but the Intellectual Property Law does not have specific legal provisions for this type of trademark. Intellectual Property Law in Vietnam has not yet stated the regulations for the use of sound trademarks as a sign used as trademarks

2.1.1.2. Requirements must be met for a trademark to be eligible for trademark protection

Requirements must be met for a trademark to be eligible for trademark protection

Article 72 of Intellectual Property Law . In the e-commerce platform, it is required that regulations on the use of technical tools to support images in the e-commerce platform to be compatible with the development of e-commerce must be introduced , contributing to protecting the legal rights and interests of consumers when choosing trademarks of goods and services.

2.1.1.3. The mechanism of trademark protection in e-commerce

In the e-commerce platform, in principle there is no contradiction in the application of the principle of territoriality in the traditional environment or in the e-commerce platform. The peculiarities of the e-commerce platform do not arise to amend the owner's trademark registration regulations. The protection mechanism based on trademark registration in the e-commerce platform is exactly the same as that provided in the traditional territorial environment.

2.1.1.4. Mechanism for establishing trademark rights in e-commerce

Determining the mechanism for establishing trademark rights in e-commerce is similar to determining the mechanism for establishing trademark rights in the traditional environment. Basically, the peculiar problem in the e-commerce platform related to the mechanism of establishing trademark rights is unnecessary.

2.1.2. Regulations on exploitation of industrial property rights to trademarks in e-commerce

2.1.2.1. Using protected trademarks in e-commerce

In the e-commerce platform, there are a number of issues that need to be governed by legal provisions, including:

Firstly, using a protected trademark as an online marketing tool for the enterprise's products and services

With this act of trademark exploitation, is it infringing the exclusive rights of the trademark owner?

Second, using trademarks to create linkages in e-commerce

The issue related to trademarks associated with e-commerce website linking activities is whether the use of trademarks in hyperlinks is within the exclusive scope of trademarks right?

Third, Internet marketing and advertising activities have the emergence of third-party's trademarks: to what extent does the issue of extending the scope of content rights of trademark owners in e-commerce?

2.1.2.2. The exhaustion of intellectual property right and parallel import

Currently, Vietnamese legal system has not yet had introduced any direct guidance or case law about the exhaustion of intellectual property right and parallel import. Is there a uniform application of the regulations about international exhaustion of right and parallel import to goods and services in this peculiar environment

2.1.2.3. *The relationship between domain names and trademarks in e-commerce*

Regarding the determination of acts of unfair competition related to trademarks and domain names according to Vietnamese law:

In the e-commerce, the Vietnamese legal system has not yet had introduced any specific guidelines on unfair competition acts between domain names and trademarks.

Resolving disputes between domain names and trademarks in e-commerce: Vietnamese legal system has not yet had introduced any clear dispute resolution policy about domain names and trademarks in e-commerce.

2.1.2.4. *The responsibilities of online intermediary providers in e-commerce*

The content of the responsibility of ISPs according to Vietnamese law needs to be further expanded to be compatible with the legal provisions of international law.

2.1.3. **Legal provisions on the protection of industrial property rights to trademarks in e-commerce**

2.1.3.1. *Trademark infringement in e-commerce*

In the e-commerce, the problem of protecting industrial property rights for trademarks arises as follows
i) trademark infringement acts in e-commerce take place more directly and commonly in traditional environment. ii) The possibility of trademark infringement in the e-commerce platform is higher and more complex than in the traditional environment, due to the coexistence of trademarks in the traditional environment and in the e-commerce platform.

2.1.3.2. *Legal provisions on measures to protect industrial property rights to trademarks in e-commerce*

Similar to other legal systems in the world, Vietnamese legal system has introduced legal provisions on measures to protect industrial property rights for trademarks, including:

- Measures for self-protection of industrial property rights to trademarks in e-commerce
- Administrative handling measures on handling acts of industrial property rights infringement to trademarks in e-commerce
- Civil and criminal measures for acts of industrial property rights infringement to trademarks in e-commerce
- Border enforcement measures for goods and services in e-commerce

2.2. The reality of enforcing legal provisions of industrial property rights to trademarks in e-commerce

2.1.2.1. The reality of legal provisions enforcement activities of industrial property rights to trademarks in e-commerce

The reality of activities for establishment industrial property rights activities to trademarks in e-commerce

Although the National Office of Intellectual Property still accepts three-dimensional trademark protection. But, in reality, the National Office of Intellectual Property has not yet recorded any cases of three-dimensional trademarks of goods and services registered in the e-commerce.

2.2.1.2. The reality of activities exploitation of industrial property rights to trademarks in e-commerce

In reality, the following acts need to be paid attention to when exploiting industrial property rights to trademarks in e-commerce:

- Acts of using trademarks without the permission of the right holder on search engines, banners, advertising pages, websites

- The resolution of disputes between domain names and trademarks in e-commerce

- Determining the responsibilities of e-commerce trading floor owners

- The intentional or unintentional act of the above acts has caused disputes over industrial property rights to trademarks, having certain effects on the interests of rights holders, which requires Vietnamese policymakers for legal system to have corresponding amendment and handling measures

2.2.1.3. The reality of activities for protection of industrial property rights to trademarks in e-commerce.

Handling the problem of counterfeit goods and trademark infringing goods on e-commerce websites. It is difficult to identify many problems: verifying website addresses providing counterfeit trademark goods, evidence collection; identify the object of buying and selling counterfeit goods...

The implementation of activities to protect industrial property rights to trademarks in e-commerce is carried out by the entities in accordance with the following measures:

- Measures for self-protection of industrial property rights to trademarks in e-commerce

- Administrative handling measures

- Criminal measures

- Border enforcement measures for goods and services in e-commerce

Above measures are actively and proactively carried out by entities. Therefore, there have been certain results. However, there are still significant challenges that need to be met.

2.2.2. Inadequacies in legal provision enforcement on industrial property rights for trademarks in e-commerce today

Firstly, in the State administration of intellectual property and industrial property for trademarks in e-commerce.

Secondly, the enforcement of industrial property rights to trademarks in e-commerce is still inadequate.

Thirdly, the current awareness of enterprises about industrial property rights to trademarks in e-commerce is still low.

Fourthly, consumers and society's awareness of respecting and protecting intellectual property rights and industrial property rights to trademarks in the e-commerce.

Fifthly, the protection of legal rights and interests of consumers and the social community against acts of industrial property rights infringement to trademarks in e-commerce has not been thorough and effective.

Seventhly, some other inadequacies

2.2.3. The causes of inadequacies in the legal provisions enforcement on industrial property rights to trademarks in e-commerce

Firstly, stemming from the causes in the state administration of e-commerce and intellectual property

Secondly, the cause for the legal provision enforcement of industrial property law to trademarks in e-commerce

Thirdly, on propaganda, guidance and training on intellectual property, industrial property rights to trademarks in the e-commerce.

Fourthly, as regard to consumer awareness in respecting and protecting intellectual property rights and industrial property rights to trademarks in the e-commerce.

Fifthly, about protecting the legal rights and interests of consumers against acts of industrial property rights infringement to trademarks in e-commerce.

CHAPTER 3

COMPLETING LEGAL SYSTEM AND IMPROVING EFFICIENCY OF LEGAL PROVISIONS ENFORCEMENT ON INDUSTRIAL PROPERTY RIGHTS TO TRADEMARKS IN E-COMMERCE IN VIETNAM

3.1. The requirements for improving the legal system on industrial property rights to trademarks in e-commerce.

3.1.1. Ensuring compliance with the Party's policies on developing a socialist-oriented market economy

3.1.2. Ensuring the consistency, synchronization and feasibility of the legal provisions

3.1.3. Ensuring the suitability with the conditions and level of economic growth of Vietnam

3.1.4. Ensuring the harmony of interests of entities

3.1.5. Meeting the requirements of international integration

3.2. The solution to completing the legal provisions on industrial property rights to trademarks in e-commerce in Vietnam

3.2.1. Completing legal provisions on intellectual property rights

3.2.1.1. Completing the legal provisions on objects used as trademarks

The three-dimensional sign applied under the current Intellectual Property Law should be removed because it is not compatible for the digital space platform, unless a virtual space can be created in this platform. The regulation of signs as sound trademarks needs to be amended and supplemented in the intellectual property law in Vietnam.

3.2.1.2. Amending the legal provisions of the Intellectual Property Law related to the exhaustion of rights and parallel import of trademark protected goods in e-commerce

The principle of exhaustion of rights in the traditional environment is still applied in the e-commerce platform.

Regulations on parallel imported goods in e-commerce, it is necessary to introduce exceptional case to the principle of exhaustion of industrial property rights to trademarks in e-commerce.

3.2.1.3. Amending legal provisions of intellectual property law in resolving trademark conflicts of a “transnational” nature arising on the basis of trademark co-existence: There is a need for regulation to provide guidelines for this issue, which should be supplemented with a provision on “an exception to the use of a trademark for the purpose of accurately describing the legitimate goods or services bearing the trademark”.

3.2.2. Completing legal provisions on e-commerce:

It is necessary to develop an E-commerce Law to stipulate the rights and obligations of entities when participating in business activities in the e-commerce platform, and the responsibilities of state management agencies in e-commerce activities.

The E-commerce law needs to develop a separate chapter to regulate the contents of intellectual property arising in the e-commerce platform, including amending the issues of intellectual property rights for trademarks in the e-commerce platform specifically:

- i) Regulations on acts of industrial property rights infringement to trademarks in e-commerce: Develop a concept and provide specific guidance on acts of industrial property rights infringement to trademarks in e-commerce (developing a Decree guiding E-commerce Law enforcement including this content)
- ii) Regulations on counterfeit trademark goods in e-commerce: It is necessary to develop and clearly define in the Decree guiding the E-commerce law enforcement on how to identify counterfeit trademark goods and protect intellectual property rights. in e-commerce; order and procedures for collecting information to handle acts of intellectual property rights infringement in e-commerce; specific provisions on criminal handling for acts of forging trademarks in e-commerce
- iii) Regulations on responsibilities of ISPs in e-commerce related to industrial property rights to trademarks: The Ministry of Information and Communication, the Ministry of Science and Technology need to coordinate in developing a Decree regulating the responsibilities of the trademarks. organizations and enterprises providing intermediary services in the protection of industrial property rights in e-commerce.
- iv) Regulations on inspection and supervision of exported and imported goods in e-commerce with industrial property rights protection claims for trademarks: The Government should soon issue a Decree on management of commercial activities cross-border e-commerce with detailed regulations on the rights and obligations of related entities...

3.2.3. Completing other relevant legal provisions

3.2.3.1. *Completing the legal provisions on unfair competition acts related to trademarks and domain names in e-commerce*

Firstly, it is necessary to clearly stipulate in the Information Technology Law what is called the act of registration, possession and use of domain names with unfair competition for trademarks in e-commerce. Second, stipulating the content of "unfair" criteria in the registration, possession and use of domain names "with bad intentions" of individuals/organizations. Third, it is necessary to add provisions on trademark issues in Article 69 Protection of intellectual property rights in the field of information technology in the Law on Information Technology. Fourth, it is necessary to add the provisions in Article 12 on domain name registration in Decree No. 72/2013/ND-CP dated 15/07/2013. Fifth, in promulgating sanctions to handle acts of unfair competition related to domain names and trademarks

3.2.3.2. *Amending and supplementing the Law on Protection of Consumer Rights*

It is necessary to supplement in the Law on Protection of Consumer Rights the right to claim compensation for damage caused by consumers being deceived about information about product, goods and service marks in e-commerce; Articles on the type of company, legal entity, capable of suing to better protect the interests of consumers against infringing acts that cause damage to the interests of consumers.

3.3. Improving the efficiency of the legal provision enforcement on industrial property rights to trademarks in e-commerce in Viet Nam

3.3.1. *Solutions for the operation of state management agencies:*

For the Government, the Government needs to build and complete the basis and policies for the application and development of the digital economy.

For ministries and sectors (Ministry of Industry and Trade, Ministry of Public Security, General Department of Customs, Ministry of Science and Technology, Ministry of Finance, etc.), it is necessary to uniformly issue strategies and annual plans in coordination of actions to protect protection of intellectual property rights in e-commerce, including content on protection of industrial property rights for trademarks in the e-commerce.

State management agencies specialized in e-commerce and consumer protection, such as the Department of E-commerce and Digital Technology and the Department of Competition and Protection of E-commerce interests (Ministry of Industry and Trade) need have an annual plan, coordinate in organizing training sessions on consumer protection in e-commerce, measures to identify counterfeit goods, goods infringing upon intellectual property rights, feedback process and provide information that infringes intellectual property rights.

3.3.2. Solutions on the operation of legal rights enforcement agencies

For inspection agencies: it is necessary to complete inspection and examination activities on e-commerce. At the local level, it is necessary to build a specialized department on e-commerce under the Departments of Industry and Trade. For industrial property assessors: To enhance the effectiveness of assessment activities, it is necessary to research and develop a framework of training programs and tests of industrial property assessment. For market management team, it is necessary to step up training and improve the level of fighting against counterfeit goods in the e-commerce platform. For the Department of Competition and Consumer Protection: It is necessary to put all resources into investing in facilities and developing human resources for agencies and organizations to protect consumers' interests. . For the Court, it is very necessary to develop "Guidelines" on intellectual property for judges to resolve specific disputes in e-commerce, including disputes over industrial property rights over trademarks in e-commerce

3.3.3. Solutions for Trademark Owner's Operations

Firstly, enterprises need to register domain names, have knowledge, choose a dispute resolution mechanism, and fight against domain name misappropriation.

Second, enterprises need to apply technological measures to manage and protect their trademark ownership in the e-commerce platform.

3.3.4. Solutions for the operation of sales e-commerce website owners

As an online intermediary, merchants and organizations providing an platform for e-commerce activities need to understand about intellectual property rights infringement in general, industrial property rights for trademarks in particular, as well as taking useful measures and tools to contribute to building a culture of healthy competition and promoting the development of e-commerce.

3.3.5. Solutions for consumer operations

When participating in the e-commerce market, in order to optimize their benefits, and also to protect their own interests, consumers also need to equip themselves with basic knowledge, as relevant regulations to protect the interests of consum

GENERAL CONCLUSION

1. In Vietnam, in recent years, e-commerce has developed rapidly with e-commerce infrastructure and established legal corridor *The thesis analyzes legal aspects of industrial property rights for trademarks in the e-commerce in establishing rights, exploiting and protecting industrial property rights for trademarks in this particular environment*

2. *The borderless essence of the Internet has posed many challenges to the fundamental principles of intellectual property rights in establishing rights, exploiting and protecting industrial property rights for trademarks in e-commerce*

3. *Analyzing the reality legal system and legal provisions enforcement on industrial property rights to demarks in e-commerce in Vietnam, referring to international experience shows that Vietnam has made great efforts in regulate industrial property regulations for trademarks in e-commerce. However, recent adjustments have not fully solved the problems arising in the rapidly developing practice of e-commerce.*

4. *Vietnam needs to complete legal provisions on intellectual property, on e-commerce and related legal regulations; improve the operational efficiency of law enforcement agencies in this field.*

LIST OF SCIENTIFIC WORKS RELATED TO THE THESIS

1. *Some theoretical issues on the protection of industrial property rights for trademarks in e-commerce*, Journal of Democracy and Law, No. 10 (331) October 2019.
2. Responsibilities of online service providers for trademark protection in e-commerce, Journal of Democracy and Law, July 2020 thematic issue.
3. *Completing the legal provisions on infringement of industrial property rights to trademarks in the e-commerce*, Journal of Education and Society , No. 110 (171), May 2020